

10	24-01401746 <i>Nguyen vs. Mercedes Benz USA, LLC</i>	1) Motion to Compel Further Responses to Form Interrogatories 2) Motion to Compel Production <u>Motion 1</u> Defendant Mercedes-Benz USA, LLC’s Motion to Compel Further Responses to Form Interrogatories, Set One, is DENIED as moot. Defendant moves for an order compelling Plaintiff to serve further verified responses to Form Interrogatories, Set One, Nos. 2.2 and 2.7 and imposing monetary sanctions. On 9/11/25, Plaintiff served supplemental responses and subsequently served verifications. (Achatz Decl., ¶¶ 5-6; Wong Decl., ¶ 6, Ex. 4-6.) On 3/13/26, Plaintiff served verified further supplemental responses. (See Wong Decl., ¶ 9, Exs. 7-10.) Defendant’s reply brief does not identify any specific supplemental responses to the Form Interrogatories at issue that are still deficient. Thus, the motion is moot. Defendant’s request for sanctions is DENIED. Sanctions against Plaintiff are not warranted because Defendant did not make serious attempts to obtain informal resolution prior to filing this motion. Defendant sent a single letter requesting supplemental responses by 9/11/25. (Achatz Decl., ¶¶ 3-4; Wong Decl., ¶ 5, Ex. 3.) Plaintiff did so. (Achatz Decl., ¶¶ 5-6; Wong Decl., ¶ 6, Ex. 4-6.) Instead of making additional attempts to meet and confer after receiving the supplemental responses, Defendant filed these motions three weeks later. (See Wong Decl., ¶ 7.) This was inadequate. (See Code Civ. Proc., § 2016.040; <i>Clement v. Alegre</i> (2009) 177 Cal.App.4th 1277, 1293 [Discovery Act requires moving party to declare he or she has made a serious attempt to obtain an informal resolution of each issue; rule designed to encourage parties to work out their differences informally to avoid necessity for formal order, which lessens burden on court and reduces unnecessary expenditure of resources by litigants]; <i>Sinaiko Healthcare Consulting, Inc. v. Pacific Healthcare Consultants</i> (2007) 148 Cal.App.4th 390, 402 [central precept of Discovery Act that discovery be self-executing]. <u>Motion 2</u> Defendant Mercedes-Benz USA, LLC’s Motion to Compel Further Responses to Requests for Production of Documents, Set One, is GRANTED, in part, and DENIED, in part. Defendant moves for an order compelling Plaintiff to serve further verified responses to Production of Documents, Set One, (“RFPs”), Nos.
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2, 6-13, 21-27, 30-33, 35-37 and 39-49 and imposing monetary sanctions.

On 9/11/25, Plaintiff served supplemental responses and subsequently served verifications. (Achatz Decl., ¶¶ 5-6; Wong Decl., ¶ 6, Ex. 4-6.) On 3/13/26, Plaintiff served verified further supplemental responses. (See Wong Decl., ¶ 9, Exs. 7-10.) Defendant's reply brief contends the following RFPs are still deficient: No. 11, 21-22, and 35-37. As such, the Court finds the motion as to the remaining RFPs is moot.

RFP No. 11

This request seeks production of all promotional documents that Plaintiff obtained, received or viewed before Plaintiff purchased the vehicle.

Plaintiff initially responded with objections only. Plaintiff supplemented this response as follows: "Subject to, and without waiving the foregoing objections, Plaintiff responds as follows: [¶] Plaintiff is not withholding any documents based on objections. [¶] Responding party has conducted a diligent search and reasonable inquiry and there are no responsive items in their possession, custody, and control. Plaintiff is informed and believes that documents responsive to this request are in Defendant's possession, custody and control. [¶] Discovery and investigation are ongoing, and Plaintiff reserves the right to amend and/or supplement this response."

Defendant contends this response is not code-compliant because it fails to specify why the documents are not in Plaintiff's possession, custody or control.

The Court agrees. A responding party's statement of inability to comply must, among other things, "specify whether the inability to comply is because the particular item or category has never existed, has been destroyed, has been lost, misplaced, or stolen, or has never been, or is no longer, in the possession, custody, or control of the responding party." (Code Civ. Proc. § 2031.320.)

Plaintiff's response fails to do so.

Therefore, the motion as to RFP No. 11 is GRANTED.

RFP Nos. 21-22

No. 21 seeks "All DOCUMENTS which support YOUR claim for attorney's fees in the instant lawsuit, including, but not limited to, retainer agreements, contracts, invoices, bills, time sheets, memoranda and correspondence."

No. 22 seeks "All DOCUMENTS which support YOUR contention that YOU are entitled to costs as alleged in YOUR complaint, including, but

not limited to, retainer agreements, contracts, invoices, bills, ledgers, receipts, memoranda and correspondence.

Plaintiff responded to these RFPs with the same objections and the identical substantive response: “Subject to said objections, Plaintiff responds: [¶] Plaintiff has conducted a diligent search and will produce non-privileged, responsive items in their possession, custody, and control. [¶] Discovery and investigation are ongoing, and Plaintiff reserves the right to amend and/or supplement this response.”

Plaintiff never supplemented these responses.

On a motion to compel further responses to requests for production of documents, the moving party bears the initial burden of providing “specific facts showing good cause justifying the discovery sought by the demand.” (Code Civ. Proc., § 2031.310, subd. (b).) Good cause is shown by establishing both relevance to the subject matter (e.g., how the information in the documents would tend to prove or disprove some issue in the case) and specific facts justifying the discovery (e.g., why such information is necessary for trial preparation or to prevent surprise at trial). (*Glenfed Develop. Corp. v. Sup.Ct. (National Union Fire Ins. Co. of Pittsburgh, Penn.)* (1997) 53 Cal.App.4th 1113, 1117; see also *Kirkland v. Superior Court (Guess?, Inc.)* (2002) 95 Cal.App.4th 92, 98.) Good cause is established through declarations containing “specific facts” rather than mere conclusions. (See Weil & Brown, Cal. Prac. Guide Civ. Pro. Before Trial (The Rutter Group) § 8:1482; see, e.g., *Fireman's Fund Ins. Co. v. Sup.Ct. (Paine Webber Real Estate Secur.)* (1991) 233 Cal.App.3d 1138, 1141 [holding the plaintiff's desire to review documents for “context” was “a patently insufficient ground” for production of sensitive commercial information].)

Once good cause is shown, the burden shifts to the opposing party to justify any objections made to the disclosure. (*Kirkland, supra*, 95 Cal.App.4th at p. 98.)

Defendant makes no attempt to establish good cause other than stating in its separate statement that these requests are reasonably calculated to lead to the discovery of admissible evidence and the failure to provide the information has impeded Defendant's ability to evaluate Plaintiff's claims and alleged damages.

This explanation, however, fails to explain how Plaintiff's retainer agreement with his counsel, his counsel's billing invoices, etc. will aid Defendant's evaluation of Plaintiff's claims and damages. In addition, on their face, these requests seek documents protected by attorney-client privilege and attorney work product, e.g. “memoranda and correspondence” related to attorney fees and costs.

Therefore, the motion as to RFP Nos. 21-22 is DENIED.

RFP Nos. 35

This request seeks all class action documents Plaintiff received regarding the vehicle. Plaintiff responded with only objections and never supplemented this response.

In its separate statement, Defendant contends that it is entitled to this information because the class action documents relate to the subject vehicle. Without more, however, being related to the subject vehicle does not establish good cause for production. Defendant fails to explain what issues the class action documents tend to prove or disprove. Defendant also fails to explain how such information is necessary for its trial preparation or to prevent surprise at trial.

Therefore, the motion as to RFP No. 35 is DENIED.

RFP Nos. 36-37

No. 36 seeks all documents regarding any other actions pursuant to any lemon law that Plaintiff has been involved in.

No. 37 seeks all documents regarding communications Plaintiff has had relating to any lemon law actions.

Plaintiff responded to both RFPs with objections only and never supplemented these responses.

Defendant contends it is entitled to this information because these RFPs seek specific documents/information related to Plaintiff's motives in bringing this action and his history with other vehicles/lemon law.

Defendant's explanation fails to establish good cause. Defendant fails to explain what issues Plaintiff's motives tend to prove or disprove or how such information is necessary for Defendant's trial preparation or to prevent surprise at trial.

Therefore, the motion as to RFP Nos. 36 and 37 is DENIED.

Sanctions

Defendant's request for sanctions is DENIED for the reasons specified above in the Court's ruling on Defendant's Motion to Compel Further Responses to Form Interrogatories.

Plaintiff is ORDERED to serve further verified responses to RFP No. 11 within 20 days.

Defendant to give notice.

11	25-01514243 <i>Parker vs. AMPCO Contracting Inc.</i>	Motion to Compel Arbitration Defendants AMPCO Contracting Inc. (“AMPCO”) and KML Services, Inc.’s (“KML”) motion to compel plaintiff Felix Parker to submit his claims against Defendants to binding arbitration; and to stay the action pending completion of the arbitration is GRANTED. Defendants move to compel arbitration pursuant to the Federal Arbitration Act (9 U.S.C. § 1, et seq.) and Code of Civil Procedure Sections 1280 et seq. <u>Federal Arbitration Act (“FAA”):</u> The FAA “applies where there is ‘a contract evidencing a transaction involving commerce.’” (<i>Allied-Bruce Terminix Companies, Inc. v. Dobson</i> (1995) 513 U.S. 265, 277 [quoting 9 USC § 2] [emphasis in original].) Here, the agreement to arbitrate submitted by Defendants expressly states, “[t]his Agreement is entered into under the Federal Arbitration Act, and shall be interpreted and construed in accordance with the law and procedures developed under that statute. (Vitta Decl., Ex. A, Section 8.) Therefore, the FAA applies. A court’s role in considering a petition to compel arbitration under the FAA is limited to “determining (1) whether a valid agreement to arbitrate exists and, if it does, (2) whether the agreement encompasses the dispute at issue. If the response is affirmative on both counts, then the Act requires the court to enforce the arbitration agreement in accordance with its terms.” (<i>Chiron Corp. v. Ortho Diagnostic Sys. Inc.</i> (9th Cir. 2000) 207 F.3d 1126, 1130.) “In determining the rights of parties to enforce an arbitration agreement within the FAA’s scope, courts apply state contract law while giving due regard to the federal policy favoring arbitration.” (<i>Pinnacle Museum Tower Assn. v. Pinnacle Market Development (US), LLC</i> (2012) 55 Cal.4th 223, 236 (<i>Pinnacle</i>)). “The party seeking arbitration bears the burden of proving the existence of an arbitration agreement, and the party opposing arbitration bears the burden of proving any defense, such as unconscionability.” (<i>Ibid.</i>) <u>Existence of an agreement to arbitrate which encompasses the claims at issue:</u> Plaintiff entered into an Arbitration Agreement (“Agreement”) with defendant KML on February 4, 2025. (Vitta Decl., Ex. A.) The Agreement provides that: “Any and all claims or controversies arising out of Employee’s application or candidacy for employment, employment, or cessation of employment with the Company shall be resolved through final and binding arbitration pursuant to the Employment Arbitration Rules of the American Arbitration Association (‘AAA’) in existence as of the time the dispute arises. (Vitta Decl., Ex. A, Section 1.) Plaintiff does not dispute signing the Agreement. Therefore, defendant KML has sufficiently shown the existence of an agreement to arbitrate.
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